CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
January 19, 2010
12:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Tuesday, January 19, 2010 at 12:10 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby. Commissioner Rose Tydus was not present.

2. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. RESOLUTION:

A) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE APPOINTMENT OF CLARANCE PATTERSON AS PERMANENT CITY MANAGER AND TO PROVIDE THE TERMS THEREOF; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.C.*

The above resolution was read by title by Attorney Geller.

Commissioner Johnson thanked the Commission for allowing her the opportunity to negotiate the terms of Clarance Patterson as the City Manager. The contribution for deferred compensation in Section 2 (b) of the resolution was left blank until she was able to check with the Finance Department. In addition to that, she spoke to the Mayor of the City of North Miami to have a comfort level as to whether Mr. Patterson was fired or resigned and the Mayor indicated that Mr. Patterson resigned. She also requested that Mr. Patterson go to the Opa-locka Police Department for a criminal background check and to

have his fingerprints taken. Also, it was brought to her attention that he has no history. To support the dialogue from the City of North Miami the Commission was provided with a copy of a letter which she directed the City Clerk to read into the record.

Clerk Irby read the letter dated January 14, 2010 from the City of North Miami addressed to Joseph Geller into the record as follows: Mr. Patterson was hired as City Manager for the City of North Miami on February 25, 2004. He served in this capacity admirably until he decided to resign effective November 30, 2009. There is no impropriety or misconduct connected to his tenure with the city. This letter was signed by Rebecca Jones, Director of Personnel Administration.

Vice Mayor Taylor asked, what is the percentage for Section 2 (B)?

Manager Finnie advised that the city's contribution is 10% which is the city's policy.

Attorney Geller advised that the 10% can be inserted without objection or the Mayor can call for a motion.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to insert 10% into Section 2 (B) of the resolution in accordance with city policy.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Commissioner Holmes	Yes
Mayor Kelley	Yes

Commissioner Holmes stated that he had numerous concerns, some of which he didn't want to discuss. With regards to the letter read into the record from the City of North Miami, he reminded the Commission that normally a City Manager will resign when there's a change in the members of the Commission and when the politicians changed in the City of North Miami, that's when the leadership changed.

He continued by saying that he spoke to an individual with the City of North Miami who stated that Mr. Clarance Patterson was a good man; but if he's such a good man and did such a great job, then why didn't they keep him in the City of North Miami.

He further stated that he didn't know Mr. Patterson very well but he heard of him and Mr. Patterson feels like he could perform the job in Opa-locka as City Manager. He made Mr. Patterson aware that as City Manager, he would be under a lot of pressure. He said there's been a lot said within the last few days in terms of outside interference and if the resolution passes then he wants Mr. Patterson to know that he is the person serving as the City Manager and any outside influence is not the City Manager.

Although Mayor Kelley voted in favor of Mr. Patterson as the City Manager, he said he had concerns relating to Section 2 of the resolution relating to the salary of $135,000.00 per year for a city of our size in comparison to other cities which in his opinion is too high.

In terms of the yearly salary of $135,000.00, Commissioner Johnson said she looked at the former City Manager's salary (Jannie Beverly) which was $125,000.00.

Mayor Kelley stated that his other concern was in subsection B in terms of the city's contribution for deferred compensation which was already addressed in accordance with city policy. Additionally, he asked for clarification on subsection C where it talks about the reimbursement on personal credit card or at his personal expense.

Commissioner Johnson advised in her gathering with Mr. Patterson, he stated that he didn't want a city credit card nor did he want a city telephone and preferred to use his personal cellular phone and personal credit card. Anything related to city business would be reimbursed upon the city receiving an original receipt.

Mayor Kelley preferred that the City Manager is issued a city credit card for city expenses because there may be emergency situations and he wouldn't want to put him or the city in a position where they have to dissect his personal expense. His additional concern was under subsection E in terms of the unused annual and sick leave. He said he'd always had that challenge with City Managers in that they always leave with accrual time and they never seemed to have used up personal leave or sick leaved.

In terms of Subsection E, Vice Mayor Taylor asked, is it policy that all employees are paid any unused annual personal leave and unused sick leave at the time of separation from the city.

Manager Finnie stated that the city has a policy where an employee will have access to their unused sick and vacation time if they leave the city.

Mayor Kelley stated that his concern is in using up the annual or sick leave in management positions. He thought the policy had changed because there were so many employees accumulating unused time and if they were to cash out the city would have to write a big check.

Manager Finnie stated that once an employee retires or resign they have access to their vacation and sick leave; however, there is a use it or lose it policy in place for employees.

Mayor Kelley asked, does that policy apply to appointed officials?

Manager Finnie advised that is has not been applied to appointed officials because of the tenure with the city.

Vice Mayor Taylor asked, what is the policy for directors?

Manager Finnie stated that the policy may apply to directors as well but that policy has never applied to the City Manager.

Commissioner Johnson asked that John Riley of the Opa-locka Personnel Board come forward to address her concern relating to Annual Personal Leave.

John Riley, Chairman of the City of Opa-locka Personnel Board came forward and stated that because of the Family Leave Act there's personal leave and the personal leave can be a part of the annual leave; but in the case of a prolonged illness, an employee can divide it between their sick leave and vacation leave.

Commissioner Johnson stated that because the City Manager is an exempt employee, he or she is guaranteed a certain amount of hours whether they work or not.

Mr. Riley stated what Commissioner Johnson stated is correct and the Commission as the policy maker would determine as to what the administration would receive.

Mayor Kelley stated to the Commission that subsection E is what the city's current policy is and if they want to deal with that at a later time then they would have to get with the City Attorney.

Commissioner Johnson agreed that Mr. Patterson should be issued a city credit card to be used for all city related matters. She further allowed the City Attorney to state what was discussed at the meeting in terms of the credit card.

Attorney Geller stated that Mr. Patterson did indicate that he had no problem with the city credit card for local matters; however, perhaps it would be easier to use his personal credit card for travel.

Vice Mayor Taylor asked, under what circumstance would the City Manager not be able to use the city credit card?

Attorney Geller provided a possibility for when the city credit card could not be used if there was a glitch on the part of the credit card company failing to credit payment made by the city and the credit card is declined.

Mayor Kelley stated that his preference is if the City Manager is going to conduct city business then the city's credit card should be used whenever possible.

Commissioner Holmes agreed with Mayor Kelley that Mr. Patterson should utilize a city credit card for all city related expenses.

Upon hearing the discussion from the Commission in terms of subsection C, Attorney Geller proposed the following amendment: The City will pay reasonable professional development fees and expenses for Manager, including travel. All such expenses, and

other reasonable incurred business expenses, shall either be charged on a city credit card to be provided to the City Manager, whenever reasonably possible, or shall be reimbursed to the City Manager if incurred on his personal credit card or at his personal expense. All such expenses and reimbursements shall be subject to the furnishing of original paid receipts or original invoices, and appropriate backup, by the Manager to the Finance Department.

The gavel was relinquished to Vice Mayor Taylor, it was moved by Mayor Kelley, seconded by Commissioner Johnson to amend subsection C as stated above by Attorney Geller.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

Vice Mayor Taylor returned the gavel to Mayor Kelley.

Commissioner Johnson asked the Commission to make a suggestion for the City Manager's annual salary to be included in Subsection A.

Based on his research of City Manager's salary in other cities with population of over 100,000, Mayor Kelley stated in his opinion that a city of 20,000 cannot afford the salary of $135,000.00 so he prefers the annual salary to be in the $110,000.00 - $115,000.00 range.

Commissioner Holmes expressed his concern in terms of the process for selecting a City Manager because it was not done properly and that is one of the reasons why he's uneasy about this issue.

Commissioner Johnson recommended an annual salary of $115,000.00 - $120,000.00.

Vice Mayor Taylor suggested the annual salary of $125,000.00.

Attorney Geller stated that the Commission may vote on the salary recommendations, come to a consensus by discussion or they are permitted to take a brief recess; however, the only thing they cannot do if taking a recess is that more than one member of the Commission at a time cannot speak to Mr. Patterson.

Manager Finnie stated that he was not the highest paid employee in the city and anything south of $117,000.00 would create problems.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to take a brief recess to negotiate the salary with the City Manager.

Commissioner Holmes suggested that the Commission vote on the resolution with the salary as is at $135,000.00. Although the City of Opa-locka is a small city, it is a very difficult city to serve as City Manager.

There being no further discussion, the motion for a recess passed by a 3-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes

The meeting adjourned for a five minute recess.

Upon the conclusion of the recess, the special commission meeting reconvened.

In speaking with the applicant, Commissioner Johnson stated that a reasonable accepted salary is $125,000.00 per year with the option of his performance appraisal in six months to re-evaluation the amount.

Attorney Geller stated that Section 2 (a) of the resolution would be amended to read as follows: The City Manager is to receive Annual Salary of One Hundred Twenty-Five Thousand Dollars ($125,000.00) per year, payable bi-weekly as a base salary, plus any cost-of-living increases received by other employees, reviewable after six (6) months.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend Section 2 (a) of the resolution as stated above by the City Attorney.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

Commissioner Holmes stated to Mr. Patterson, should he accept the position of City Manager for the City of Opa-locka that there's an election this year and the politicians do change; however, he is looking for Mr. Patterson to do an excellent job.

There being no further discussion on the original motion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes

5. ADJOURNEMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 1:03 p.m.

MAYOR

ATTEST:

CITY CLERK